

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #06	CCRB Case #: 201810751	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/26/2018 4:30 PM	Location of Incident: outside of § 87(2)(b)	18 Mo. SOL 2/10/2021	Precinct: 77		
Date/Time CV Reported Fri, 12/28/2018 7:44 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 12/28/2018 7:44 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joshua Stembridge	01983	961329	077 PCT
2. POM Raymond Sanchez	25147	955442	077 PCT
3. POM Colin Russell	19390	959956	077 PCT
4. POM Brett Ostrander	18461	955284	077 PCT
5. POM Matthew Ondrejack	02668	956989	077 PCT
6. POM Tahir Malik	06148	957799	077 PCT
7. POM Robert Brower	09982	956460	077 PCT
8. POM Daniel Staffa	22621	957187	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joshua Stembridge	Abuse: Police Officer Joshua Stembridge threatened to arrest § 87(2)(b)	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On December 28, 2018, § 87(2)(b) filed a complaint with Civilian Complaint Review Board (CCRB) on the online website. On December 28, 2018, the CCRB received the complaint.

On December 26, 2018, at approximately 4:30 p.m. § 87(2)(b) was assaulted inside of § 87(2)(b) in Brooklyn. Police Officer Joshua Stembridge, Police Officer Raymond Sanchez, Police Officer Colin Russell, Police Officer Brett Ostrander, Police Officer Matthew Ondrejack, Police Officer Tahir Malik, Police Officer Robert Brower and Police Officer Daniel Staffa along from the 77th Precinct, responded to the location. § 87(2)(b) told Police Officer Stembridge that if he saw his assailant again he would have to protect himself. Police Officer Stembridge allegedly said, “Whatever, if we come back here again, I’m going to lock you up,” (**Allegation A, Abuse of Authority, unsubstantiated**). § 87(2)(b) was not arrested or issued a summons. § 87(4-b), § 87(2)(g)

Eight body-worn camera videos were obtained for this incident (Board Review 01-08).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joshua Stembridge threatened to arrest

§ 87(2)(b)

On December 26, 2018, at approximately 4:30 p.m. § 87(2)(b) entered § 87(2)(b) in Brooklyn when he was punched in the face by an individual identified solely as § 87(2)(b) (Board Review 19). They wrestled until a security guard came and “broke it up.” § 87(2)(b) called the police and reported the assault. PO Joshua Stembridge, PO Raymond Sanchez, PO Tahir Malik, PO Daniel Staffa, PO Robert Brower, PO Matthew Ondrejack, PO Colin Russell and PO Brett Ostrander responded. § 87(2)(b) spoke to PO Stembridge and confirmed that he did not sustain any injuries. § 87(2)(b) stated that if § 87(2)(b) came around him again, he would have to “do what [he] had to do,” since he had to protect himself. PO Stembridge allegedly said, “Whatever. If we come back here again, I’m going to lock you up.”

§ 87(2)(b) worked as a security guard on the incident date and he observed the physical altercation between § 87(2)(b) and § 87(2)(b). § 87(2)(b) asked the officers if he should take steps into his own hands. PO Stembridge told § 87(2)(b) to come to the precinct to file paperwork. § 87(2)(b) did not hear any officer tell § 87(2)(b) or § 87(2)(b) that they would be arrested. § 87(2)(b) observed the entire incident. He did not wish to provide a sworn statement.

PO Stembridge received a radio run for an assault in progress (Board Review 09). He and PO Sanchez responded to the location. He spoke to § 87(2)(b) who identified himself as the 911 caller. PO Stembridge explained that a report would be made and officers subsequently prepared the complaint report. It was determined that no assault was in progress. PO Stembridge did not threaten to arrest § 87(2)(b) and he did not say to him, “If we come back here again, I’m going to lock you up.” PO Stembridge did not remember § 87(2)(b) mentioning taking any actions for which he could be arrested.

It is undisputed among PO Matthew Ondrejack, PO Robert Brower, PO Daniel Staffa, PO Tahir Malik, PO Colin Russell, and PO Brett Ostrander, that they did not hear PO Stembridge say to § 87(2)(b) “If we come back here again, I’m going to lock you up,” or threaten to arrest him (Board Review 10-16).

PO Ondrejack and PO Brower were the first officers to respond to a radio call for an assault in progress at § 87(2)(b). PO Ondrejack and PO Brower left before the situation was resolved. PO Staffa and PO Malik of the 77th Precinct responded to an assault in progress at § 87(2)(b) and arrived at approximately the same time as PO Ondrejack and PO Brower. PO Russell testified that he and PO Ostrander of the 77th Precinct responded as back up to § 87(2)(b) in Brooklyn. When they arrived, there were approximately four officers already on scene including PO Stembridge and PO Sanchez. PO Ostrander and PO Russell resumed patrol before the situation ended. PO Ostrander did not remember if there were any other officers on scene when they arrived.

None of the body-worn camera videos depict any officer threatening to arrest § 87(2)(b) (Board Review 01-08). Confirmation was received that the officers disengaged their body-worn cameras after they confirmed § 87(2)(b) had no injuries and that it was a harassment incident.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g) it is recommended that **Allegation A** be closed as **unsubstantiated**.

§ 87(2)(e), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).
- PO Stembridge has been a member of service for three years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated.
- § 87(2)(g)
- PO Russell has been a member of service for three years and has been subject in three CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Ostrander has been a member of service for five years and this is the first CCRB complaints to which he has been a subject.
- PO Tahir has been a member of service for four years and has been a subject in five CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Brower has been a member of service for four years and has been a subject in four CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- PO Staffa has been a member of service for four years and has been a subject in four CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- PO Ondrejack has been a member of service for four years and this is the first CCRB complaint to which he has been a subject.
- PO Sanchez has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation but declined to mediate his complaint.
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 - As of April 30, 2019, no notice of claim has been filed.
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Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date